

THE DIGITAL PERSONAL DATA PROTECTION ACT, 2023

NO. 22 OF 2023

[11th August, 2023.]

An Act to provide for the processing of digital personal data in a manner that recognises both the right of individuals to prote

BE it enacted by Parliament in the Seventy-fourth Year of the Republic of India as follows:-

CHAPTER I

PRELIMINARY

1. Short title and commencement.

(1) This Act may be called the Digital Personal Data Protection Act, 2023.

(2) It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint.

2. Definitions.

In this Act, unless the context otherwise requires,-

(a) 'Appellate Tribunal' means the Telecom Disputes Settlement and Appellate Tribunal established under section 14 of the

(b) 'automated' means any digital process capable of operating automatically in response to instructions given or otherwise

(c) 'Board' means the Data Protection Board of India established by the Central Government under section 18;

(d) 'certain legitimate uses' means the uses referred to in section 7;

(e) 'child' means an individual who has not completed eighteen years of age;

(f) 'Data Fiduciary' means any person who alone or in conjunction with other persons determines the purpose and means of

(g) 'Data Principal' means the individual to whom the personal data relates and where such individual is a child includes the

CHAPTER II

OBLIGATIONS OF DATA FIDUCIARY

4. Grounds for processing personal data.

- (1) A person may process the personal data of a Data Principal only in accordance with the provisions of this Act and for a lawful purpose, namely:
- (a) for which the Data Principal has given her consent; or
 - (b) for certain legitimate uses.
- (2) For the purposes of this section, the expression 'lawful purpose' means any purpose which is not expressly forbidden by law.

5. Notice.

- (1) On or before requesting a Data Principal for consent, the Data Fiduciary shall give to the Data Principal a notice, informing her of:
- (i) the personal data and the purpose for which the same is proposed to be processed;
 - (ii) the manner in which she may exercise her rights under sub-section (4) of section 6 and section 13; and
 - (iii) the manner in which the Data Principal may make a complaint to the Board.

6. Consent.

- (1) The consent given by the Data Principal shall be free, specific, informed, unconditional and unambiguous with a clear affirmative action.

CHAPTER III

RIGHTS AND DUTIES OF DATA PRINCIPAL

11. Right to access information about personal data.

- (1) The Data Principal shall have the right to obtain from the Data Fiduciary to whom she has previously given consent,-
- (a) a summary of personal data which is being processed by such Data Fiduciary and the processing activities undertaken by such Data Fiduciary;
 - (b) the identities of all other Data Fiduciaries and Data Processors with whom the personal data has been shared by such Data Principal.

12. Right to correction and erasure of personal data.

- (1) A Data Principal shall have the right to correction, completion, updating and erasure of her personal data for the processing purposes.

13. Right of grievance redressal.

- (1) A Data Principal shall have the right to have readily available means of grievance redressal provided by a Data Fiduciary.